



# TRANSPORTATION INVESTMENT CORPORATION

## Multi-Use List Request for Qualifications

### Information Technology Advisors **REVISED**

|                                                                                                                                                                |                               |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| <b>Opportunity ID:</b>                                                                                                                                         | TIC TEC MULRFQ 2025 42 R      |
| <b>Issue Date:</b>                                                                                                                                             | September 10, 2024            |
| <b>Initial Intake Date and Time (Pacific Time)</b>                                                                                                             | September 27, 2024 2:00:00 PM |
| <b>MULRFQ Termination Date and Time (Pacific Time):</b>                                                                                                        | July 30, 2027                 |
| <b>In order to be considered for the Initial Intake, a <u>Response</u> must be received before the Initial Intake Response Date and Time identified above.</b> |                               |
| <b>Suppliers may submit Responses after the Initial Intake Date and Time and those Responses will be dealt with as described in section 3.5.</b>               |                               |

| <b>Delivery of Submissions</b>                                                                                                                                                                                                                                                                                                                                                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>BC Bid Electronic Submission:</b> Submit an electronic Submission using BC Bid. Submissions must be in accordance with the requirements set out in the process rules of the subject RFx. Only pre-authorized electronic bidders registered on the BC Bid system can make an electronic submission using the BC Bid system.                                                              |
| <b>Email Submission:</b> Submit a Submission by email. Submissions by email must be submitted to the email address specified below in accordance with the email submission instructions set out in the process rules for the subject RFx. Include the opportunity description and ID in the subject line of the email.<br><a href="mailto:Procurement@ticorp.ca">Procurement@ticorp.ca</a> |

|                                                                                                    |
|----------------------------------------------------------------------------------------------------|
| <b>Official Contact</b><br><b><a href="mailto:procurement@ticorp.ca">procurement@ticorp.ca</a></b> |
|----------------------------------------------------------------------------------------------------|

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## 1. Summary of the Opportunity

Transportation Investment Corporation ("TI Corp") is seeking to identify and retain individual advisors with significant experience for the provision of Information Technology Services to support the Corporation on multiple projects including EDRMS, SharePoint Integration etc. These individual advisors will be available to augment and complement existing expertise within TI Corp and on project teams, if and when required. The Services are described in greater detail in section 5 and the Appendices.

Interested Suppliers are invited to submit a Response to this Multi-Use List Request for Qualifications (MULRFQ) for the opportunity to be evaluated to determine whether they are eligible and qualified to be included on the Transportation Investment Corporation (TI Corp.) list of Qualified Suppliers to provide the specialized services described.

This MULRFQ is intended to identify and evaluate Qualified Resources by reviewing the qualifications of specific employees, individual consultants, or subcontractors proposed by Respondents

As described in section 8, on a non-exclusive "as, if and when requested" basis, only Qualified Suppliers with active Qualified Resources will be sent and may respond to Competition Notices that may issue from this MULRFQ. No Competition Notices will be issued before the Initial Intake.

Qualified Resources, as key personnel of the Contractor will be required to perform the Services under any Contract that results from a Competition Notice that is issued under the MULRFQ

Interested Suppliers should familiarize themselves with the entirety of this MULRFQ and submit a Response as described in section 7.

## 2. Definitions used in this Request for Qualifications

Throughout this Multi-Use List Request for Qualifications, the following definitions will be used (and the singular is interchangeable with the plural):

### 1. Definitions

Throughout this MULRFQ, the following definitions apply (and the singular is interchangeable with the plural):

**“Addenda”** means all additional information regarding this MULRFQ including Amendments to the MULRFQ. The “Addenda” menu tab is located on the left margin of the specific opportunity in the BC Bid application. Suppliers may need to select and set the symbol denoted as “>>” to reveal the menu tab items.

**“Amendment”** means a change to the MULRFQ that results in posting an updated version of the MULRFQ. The amendment will indicate whether a Respondent is required to submit a new Response to the MULRFQ. Amendments will be noted in the amendment reason section of the “Overview” menu tab located on the left margin of the specific opportunity in the BC Bid application. Suppliers may need to select and set the symbol denoted as “>>” to reveal the menu tab items.

**“BC Bid”** means BC Bid located at <https://www.bcbid.gov.bc.ca>; or any replacement website.

**“Closing Location”** means, as applicable, the hard copy delivery location; email address; or BC Bid for the submission of Responses as indicated on the cover page of the MULRFQ and in the “delivery of submissions” section of the “overview” menu tab on BC Bid.

**“Competition Notice”** means the TI Corp’s standard request for proposals solicitation document or such other custom solicitation document that is allowed by Core Policy for the TI Corp’s use.

**“Contract”** means a written contract between the TI Corp and a Qualified Supplier in the form referenced in a Competition Notice.

**“Contractor”** means a Qualified Supplier that has entered into a Contract.

**“Government Electronic Mail System”** means the electronic mail system of the Province.

**“Initial Intake”** means the initial intake and evaluation of Responses that are received before the Initial Intake Date and Time. After the Initial Intake Date and Time, Responses will be received on a continuous basis as further described in section 3.5.

**“Initial Intake Date and Time”** means the date and time set out on the cover page of the MULRFQ and the “RFx general information” section of the “overview” menu tab on BC Bid for the MULRFQ that applies to the Initial Intake of Responses.

**“Issue Date”** means the date the MULRFQ was posted to BC Bid as set out in the “RFx general information” section of the “overview” menu tab; and as initially set out on the cover page to the MULRFQ.

**“MULRFQ”** or **“Multi-Use List Request for Qualifications”** means this solicitation process described on BC Bid, including any attached or referenced appendices, schedules or exhibits and as may be modified in writing from time to time by TI Corp by Addenda.

**“Multi-Use List of Qualified Suppliers”** or **“Multi-Use List”** means the Qualified Suppliers, that have been determined by TI Corp to possess the qualifications described in this MULRFQ (or any subsequent modifications thereof, if any) and that have satisfied any conditions set by TI Corp for remaining on the Multi-use List.

**“must”** or **“mandatory”** means a requirement that must be met in order for a Response to receive consideration.

**“Official Contact”** means the individual set out on the cover page of the MULRFQ and named on the “opportunity details” menu tab for the MULRFQ serving as the official MULRFQ contact person for TI Corp.

**“Province”** means His Majesty the King in right of the Province of British Columbia and includes TI Corp.

**“Qualified Resource”** means a Resource that has been evaluated under this MULRFQ and meets the qualifications described in this MULRFQ and any condition set by TI Corp for continuing to be considered qualified.

**“Qualified Supplier”** means a Respondent that meets the qualifications described in this MULRFQ and that has satisfied any conditions set by TI Corp for being added to, and staying on, the Multi-use List.

**“Resource”** means an employee or subcontractor of a Respondent or Qualified Supplier that is proposed in the Response or, if Resources are not evaluated in this MULRFQ, a Resource proposed in response to a Competition Notice.

**“Resource Qualification Form”** means the Response Form that is used to solicit Resource information for evaluation.

**“Respondent”** means a Supplier that submits a Response.

**“Response”** means a written response to the MULRFQ and includes the information and documentation, if any, required by the applicable Response Form(s) that is submitted by a Respondent or Qualified Supplier, as the case may be (*see also* “Submission”).

**“Response Form”** means the Appendix Qualification Form(s), and as applicable, the Appendix B Resource Qualification Form, and any other document that is required to be submitted, if any, as part of a Response, including, if applicable, the Submission Declaration Form.

**“RFX”** has the same meaning as MULRFQ as the term may appear in BC Bid, the Submission Declaration or BC Bid pop-up advisories associated with a Response.

**“Services”** means the services described in the MULRFQ as set out in section **Error! Reference source not found.**

**“should”** or **“desirable”** means a requirement having a significant degree of importance to the objectives of this MULRFQ.

**“Submission”** as used in the Submission Declaration form and any pop-up advisories related to this MULRFQ has the same meaning as Response.

**“Submission Declaration Form”** means the form so identified and named in the MULRFQ for use with Responses submitted by email or hard copy delivery if such submission methods are allowed by the MULRFQ.

**“Supplier”** means a natural person or single legal entity (excluding its parents, subsidiaries, or other affiliates) with the legal capacity to contract that seeks to supply or supplies goods or services and includes, as the context may require, Respondents and Qualified Suppliers.

**“Tax Verification Letter”** means a letter issued by the Province’s Ministry of Finance to verify that, if required, a Qualified Supplier prior to becoming a Contractor, meets its applicable B.C. corporate income tax filing obligations and provincial sales tax (PST) filing and payment obligations. See, section 8.1.5.

**“Termination Date”** means the date (including any modifications thereof) that marks the termination and end of the period of validity for the MULRFQ and the Multi-use List as set out on the cover page of the MULRFQ and in the “RFx general information” section of the “overview” menu tab in BC Bid.

**“You”** and **“Your”** as used in the Submission Declaration and any pop-up advisories related to this MULRFQ has the same meaning as Respondent.

### **3. The Terms and Conditions of this Request for Qualifications**

#### **3.1 Copyright**

This document is subject to copyright and may be used, reproduced, modified, and distributed to the extent necessary for the Supplier to prepare and submit a Response.

#### **3.2 MULRFQ Termination Date**

Unless terminated earlier, or extended, the MULRFQ and its period of validity ends and is terminated on the date set out on the “overview” menu tab of BC Bid and the cover page of the MULRFQ.

#### **3.3 Trade Agreements**

The Multi-Use List of Qualified Suppliers established under this MULRFQ may be used for procurements covered by the following trade agreements:

- a) New West Partnership Trade Agreement;
- b) Canadian Free Trade Agreement;
- c) Canada-European Union Comprehensive Economic and Trade Agreement; and
- d) Canada-UK Trade Continuity Agreement.

#### **3.4 MULRFQ Amendments and Addenda**

It is the sole responsibility of the Respondents, Suppliers and Qualified Suppliers to check for Addenda and Amendments on BC Bid.

Suppliers, Respondents and Qualified Suppliers are encouraged to become a registered user of BC Bid and to subscribe to BC Bid’s email notification service in order to receive notices regarding Amendments and procurements or other opportunities organized by commodity codes selected by the registered user. BC Bid’s email notification service is an annual fee-based subscription service, and the duration of the registration process may vary for different users. Suppliers, Respondents and Qualified Suppliers should refer to the BC Bid website for more information.

Respondents, Suppliers and Qualified Suppliers should continually monitor the MULRFQ as published on BC Bid in the event any Amendment or Addenda to the MULRFQ have the effect of requiring a Respondent or Qualified Supplier to submit a new Response to the MULRFQ in lieu of any Response to the MULRFQ that a Respondent or Qualified Supplier may have submitted before such Amendment or Addenda. All Amendments will be noted in the amendment reason section of the “overview” menu tab on BC Bid. All Addenda will be noted on the “addenda” menu tab.

### **3.5 Submission of Responses After the Initial Intake Date and Time**

Suppliers, Respondents and Qualified Suppliers may submit a Response at any time before the MULRFQ Termination Date.

Any Response received after the Initial Intake Date and Time will be subject to that Response having been submitted in the manner as outlined in this MULRFQ and will be evaluated and considered for inclusion on the Multi-Use List within a reasonably short period of time after the Response is received, accounting for TI Corp to reasonably and practicably convene a qualifications review committee to evaluate such Response.

A Respondent who is not successful in becoming a Qualified Supplier may submit a new Response after the Initial Intake Date and Time. TI Corp will evaluate all such new Response(s) without consideration to any past Response(s) and consistent with the evaluation process described in this MULRFQ.

If this MULRFQ is also intended to qualify Resources, Qualified Suppliers may submit additional Resources for consideration by completing a new Resource Qualification Template (and any other documents applicable to reviewing the qualifications of Resources) for the new Resource(s) for evaluation by TI Corp.

### **3.6 Qualifications Review Committee**

Responses will be assessed by a qualifications review committee formed from time to time by TI Corp. The qualifications review committee may change in composition from time-to-time and may include contractors of the TI Corp.

### **3.7 Review and Selection**

Responses will be assessed in light of the qualification review criteria. TI Corp will be under no obligation to receive further information, whether written or oral, from any Respondent.

Responses will be assessed by a qualifications review committee formed from time to time by TI Corp. The qualifications review committee may change in composition from time-to-time and may include contractors of the TI Corp.

The qualifications review committee will evaluate Responses as described in section □.

### **3.8 Responses**

By submitting a Response, the Respondent agrees that such Response will be deemed to have been submitted with all due authorization of the Respondent and that the Respondent is agreeing to the terms and conditions of the MULRFQ, including how procurements are conducted under section 8 and the minimum time that a Qualified Supplier may have to respond to a Competition Notice as set out in section 8.1.2.

### **3.9 Expenses and Limitation of Liability**

Suppliers, Respondents and Qualified Suppliers are solely responsible for their own expenses in preparing a Response. TI Corp will not be liable to any Supplier, Respondent or Qualified Supplier for any claims (in contract, tort or otherwise) including for costs or damages incurred

in preparing a Response, any errors or technical difficulties associated with transmitting Responses by or email or hard-copy, or any other matter whatsoever.

Notwithstanding the foregoing, nothing in this section shall limit the right of a Respondent or Qualified Supplier to access and utilize the Bid Protest Mechanism established under the New West Partnership Trade Agreement.

### **3.10 The MULRFQ is not a Contract**

This MULRFQ is neither an offer nor an agreement to purchase any Services from any Supplier. Nor is this MULRFQ an offer or an agreement to enter, or to select any Qualified Supplier to enter into a Contract. TI Corp is not bound to enter into a Contract with any Qualified Supplier.

Notice in writing to a Respondent that it has been identified as a Qualified Supplier will not give the Respondent any legal or equitable rights or privileges relative to the Services that a Qualified Supplier may render as a Contractor. Only if a Qualified Supplier and TI Corp enter into a subsequent full written Contract will a Respondent acquire any legal or equitable rights or privileges. TI Corp makes no representations whatsoever with respect to the number of Competition Notices or Contracts that may be issued under the MULRFQ.

### **3.11 Changes to Response Wording**

The Respondent will not change the wording of its Response after the Response is submitted, and no words or comments will be added to the Response unless requested by TI Corp. for purposes of clarification. If the Respondent wishes to amend its submitted Response, the Respondent will need to withdraw the Response in accordance with below section 3.12 and submit a new Response.

### **3.12 A Response may be withdrawn at any time.**

A Respondent or Qualified Supplier may withdraw its Response, or as the case may be, withdraw from the MULRFQ at any time by notifying the Official Contact in writing by email.

### **3.13 Modification of MULRFQ**

TI Corp reserves the right to modify this MULRFQ at any time in its sole discretion, including changing the MULRFQ Termination Date, or cancelling this MULRFQ.

### **3.14 Qualified Suppliers to Advise of Changes**

Qualified Suppliers will promptly advise the Official Contact of any change in submitted qualifications for the Qualified Supplier, or, if applicable, a Qualified Resource; point of contact information for notices; business entity structure; business name; or other such changes that would affect the Qualified Supplier's or Qualified Resources.

If this MULRFQ is intended to qualify Resources and a Qualified Supplier no longer has any Qualified Resources (e.g. because the last Qualified Resource has left the Qualified Supplier's employment, has had its eligibility withdrawn by TI Corp, or is otherwise no longer available), the Qualified Supplier is required to notify the Official Contact and will no longer be considered

a Qualified Supplier. Despite the foregoing, a Qualified Supplier can reapply to the MULRFQ by submitting a new Response.

### **3.15 Ownership of Responses**

All documents, including Responses, submitted to TI Corp become the property of the TI Corp. They will be received and held in confidence by TI Corp, subject to the provisions of the *Freedom of Information and Protection of Privacy Act*. Documents will not be returned to Respondents even if the Response is withdrawn. For more information on the application of the Act, go to [http://www.cio.gov.bc.ca/cio/priv\\_leg/index.page](http://www.cio.gov.bc.ca/cio/priv_leg/index.page).

### **3.16 Collection and Use of Personal Information**

Respondents and Qualified Suppliers are solely responsible for familiarizing themselves with, and ensuring that they comply with, the laws applicable to the collection and dissemination of information, including resumes and other personal information concerning any Resources. If this MULRFQ requests Respondents and Qualified Suppliers to provide TI Corp with personal information of Resources, the Respondents or Qualified Suppliers will ensure that they have obtained written consent from each of those Resources before forwarding such personal information to TI Corp. Such written consents are to specify that the personal information may be forwarded to TI Corp for the purposes of responding to this MULRFQ and used by TI Corp for the purposes set out in the MULRFQ. TI Corp may, at any time, request the original consents or copies of the original consents from Respondents or Qualified Suppliers, and upon such request being made, Respondents or Qualified Suppliers will immediately supply such originals or copies to TI Corp.

All Qualified Suppliers, including any of their Resources, expressly consent to their respective names being published in a publicly facing manner on the Multi-Use List, if TI Corp, in its discretion, decides to make such information public.

### **3.17 Conflict of Interest, Unfair Advantage, Bias, and No Lobbying**

- a) By submitting a Response, the Respondent confirms that the current or past employment or other interests or relationships of the Respondent (including a Respondent's subcontractors and named personnel, if any) do not create or lead to any actual, potential or perceived conflict of interest, unfair advantage, bias or reasonable apprehension of bias that would favor the Respondent (including a Respondent's subcontractors and named personnel, if any) with respect to this procurement process. A Respondent may be disqualified if the Respondent's (including a Respondent's subcontractors and named personnel, if any) current or past corporate or other interests, may, in the TI Corp's opinion, give rise to an actual or potential conflict of interest, unfair advantage or reasonable apprehension of bias that would favor the Respondent (including a Respondent's subcontractors and named personnel, if any) and thereby import unfairness into the Procurement process. This includes, but is not limited to, involvement by a Respondent (including a Respondent's subcontractors and named personnel, if any) in the preparation and administration of the MULRFQ or Competition Notices or a relationship with any employee, contractor or representative of TI Corp involved in preparation of and

administration of the MULRFQ, Competition Notices or participating on the evaluation committee or in the administration of a Contract.

- b)** If a Respondent is in doubt as to whether there might be a conflict of interest, unfair advantage or reasonable apprehension of bias, the Respondent should consult its own advisors and notify and consult with the Official Contact prior to submitting a Response.
- c)** A Respondent must not attempt to influence the outcome of the MULRFQ process by engaging in lobbying activities. Any attempt by the Respondent to communicate for this purpose directly or indirectly with any employee, contractor, or representative of TI Corp, including members of the evaluation committee and any elected officials of TI Corp, or with the media, may result in disqualification of the Respondent, and/or Qualified Supplier as the case may be.

### **3.18 Reservation of Rights**

In addition to any other discretionary rights or reserved rights, TI Corp reserves the right, in its sole discretion to:

- a)** waive any non-material irregularity, defect, or deficiency in a Response;
- b)** request clarification(s) from a Respondent, or as applicable, a Qualified Supplier with respect to its Response, including clarification(s) with respect to its Response on non-material administrative matters (e.g., a matter that is not scored) or where Response provisions are ambiguous, without any obligation to make such a request to any other Respondent, or as applicable, a Qualified Supplier, and consider such clarification(s) in evaluating the Response;
- c)** reject any Response due to unsatisfactory references or unsatisfactory past performance under contracts with TI Corp, or any material error, omission, or misrepresentation in the Response;
- d)** exclude a Respondent, or as applicable, a Qualified Supplier from participation in the MULRFQ, at any point in the MULRFQ process, or to exclude a Qualified Supplier from participation in a subsequent procurement associated with a Competition Notice issued under this MULRFQ, where there is supporting evidence, on grounds of one or more of the following:
  - i)** bankruptcy or insolvency;
  - ii)** false declarations or misrepresentations;
  - iii)** significant or persistent deficiencies in performance of any substantive requirement or obligation under a prior contract or contracts with TI Corp;
  - iv)** final judgments in respect of serious crimes or other serious offences;
  - v)** professional misconduct or acts or omissions that adversely reflect on the commercial integrity of the Respondent or Qualified Supplier; or
  - vi)** engaging in conduct prohibited by the *Competition Act* such as bid-rigging as described in section 47 of the *Competition Act*, or engaging in conspiracies,

agreements or arrangements between competitors as described in section 45 of the *Competition Act*;

**vii)** failure to pay taxes; and

- e)** remove a Qualified Supplier from the Multi-Use List or, if applicable, remove a Qualified Resource's eligibility, for failing to meet the requirements for staying on the Multi-Use List of Qualified Suppliers as set out in this MULRFQ, or as may be communicated by TI Corp from time to time. On request by such Qualified Supplier, TI Corp will provide written reasons for the removal.

### **3.19 Acceptance of Terms and Conditions**

Submitting a Response indicates acceptance of all the terms and conditions set out in the MULRFQ, including all appendices, Addenda and these MULRFQ process rules.

A Response must be signed by a person authorized to sign on behalf of the Respondent:

- a)** For Responses submitted through BC Bid, clicking the "I Agree and Submit" button that follows the pop-up advisory associated with Response submission constitutes the signature of the Respondent and is acceptable without additional signature. By submitting its Response electronically through BC Bid, the Respondent is agreeing to the terms and conditions of the MULRFQ, and terms and conditions set out in the pop-up advisory that BC Bid displays prior to Response submission.
- b)** For Responses submitted by hard copy to a physical address or Responses submitted by email, Respondents must prepare and submit the Submission Declaration form that is available for download and located in the "Rfx documents" section of the "overview" menu tab for the MULRFQ.
- c)** Should a Respondent elect to use submission methods (if allowed) other than submitting through BC Bid, the Respondent consents to TI Corp taking such steps that are necessary to input information from Respondent's Response into BC Bid.

### **3.20 Submission of Responses**

- a)** For electronic submissions (BC Bid or email), the following applies:
  - (i)** The Respondent is solely responsible for ensuring that the complete electronic Response, including all attachments, is received by the TI Corp;
  - (ii)** The maximum size of any attachment uploaded to BC Bid electronically, is required to be 500 MB or less;
  - (iii)** The maximum size of each email attachment is required to be 20 MB or less (Respondents are solely responsible for ensuring that email Response submissions comply with any size restrictions imposed by the Respondents' internet service provider);
  - (iv)** Respondents should submit email Responses in a single email and avoid sending multiple email submissions for the same opportunity. If the file size of an electronic submission exceeds the applicable maximum size, the Respondent may make multiple

submissions (BC Bid upload or multiple emails for the same opportunity) to reduce attachment file size to be within the maximum applicable size; Respondents should identify the order and number of emails making up the email Response submission (e.g. "email 1 of 3, email 2 of 3...");

**(v)** For email Response submissions sent through multiple emails TI Corp reserves the right to seek clarification or reject the Response if TI Corp is unable to determine what documents constitute the complete Response;

**(vi)** Attachments must not be compressed, must not contain a virus or malware, must not be corrupted and must be able to be opened. Respondents submitting by electronic submission are solely responsible for ensuring that any emails or attachments are not corrupted. TI Corp may reject Responses that are compressed, cannot be opened or that contain viruses or malware or corrupted attachments.

- b)** Respondents are encouraged to become a registered e-bidding user of BC Bid. Only registered e-bidding users of BC Bid can make electronic Responses on BC Bid. BC Bid e-bidding is an annual fee-based subscription service and the duration of the registration process for e-bidding may vary for different users. Respondents should refer to the BC Bid website for further information
- c)** For email or hard copy Response submissions, including any changes to a Response or any withdrawal of a Response referred to in sections 3.11 and 3.12, the subject line of the email and any attachment should be clearly marked with the name of the Respondent, the MULRFQ opportunity ID and the opportunity description.
- d)** The Respondent bears all risk associated with delivering its Response by electronic submission, including but not limited to delays in transmission between the Respondent's computer and the Government Electronic Mail System or BC Bid.
- e)** While TI Corp may allow for email Response submissions, the Respondent acknowledges that email transmissions may be unreliable. The Respondent is solely responsible for ensuring that its complete email Response submission and all attachments have been received. If the Respondent receives any email confirmation from TI Corp that is associated with an email Response submission, despite the content of such email, any such email will not serve to confirm that a complete, sufficient, or timely Response or other related submission has been made by the Respondent or received by TI Corp.
- f)** An alternate submission method not initially permitted by the MULRFQ may be made available, at TI Corp's discretion, before the MULRFQ Termination Date and Time, and it is the Respondent's sole responsibility for ensuring that a complete Response (and all attachments) submitted using an approved alternate submission method is received by TI Corp before the MULRFQ Termination Date and Time. TI Corp makes no guarantee that an alternative submission method will be available or that the alternate method available will ensure that a Respondent's Response is received before the MULRFQ Termination Date and Time.

### **3.21 Supplier Request for Participation in a Procurement**

Where TI Corp rejects a Supplier's request for participation in a procurement conducted under section 8, TI Corp will promptly inform the Supplier and, on request of that Supplier, offer that Supplier a debriefing regarding its decision. The debriefing will be, at the sole option of TI Corp, by telephone conference or some other means. On request of the Supplier, TI Corp will promptly provide a written explanation for its decision.

### **3.22 Enquiries to the Official Contact**

Enquiries related to this MULRFQ including any requests for information or clarification may only be directed in writing to the Official Contact using the "enquiries" interface or the email address identified on the "opportunity details" menu tab. Information obtained from any other source is not official and should not be relied upon. Enquiries and any responses providing new information will be recorded and posted to BC Bid or otherwise distributed to Suppliers, Respondents, and Qualified Suppliers. Despite the foregoing, TI Corp may choose in its sole discretion not to respond, respond in whole or in part, or reformulate enquiries in whole or in part. TI Corp may in its sole discretion choose whether to post any such enquiries (as reformulated if reformulated) and responses to BC Bid or otherwise distribute to Suppliers, Respondents and Qualified Suppliers.

## 4. Background

### 4.1 Corporation Responsibility

TI Corp was established under the *Transportation Investment Act*. TI Corp became a subsidiary of B.C. Transportation Finance Authority (BCTFA) on April 1, 2018, with a mandate to provide enhanced oversight, management and delivery of major capital infrastructure projects. Collectively referred to as “Assigned Major Projects”, those for which TI Corp is accountable to the Ministry of Transportation and Infrastructure and the Ministry of Tourism, Arts, Culture and Sport as of July 2022 include:

1. the Pattullo Bridge Replacement Project (PBR)
2. the Broadway Subway Project (BSP)
3. the Kicking Horse Canyon Project – Phase 4 (KHCP4)
4. Highway 99 Tunnel Program – includes the Fraser River Tunnel Project (FRTTP), Steveston Interchange Project (SIP) and the Transit and Cycling Improvements (TCI)
5. Collections and Research Building (CRB)
6. Surrey Langley SkyTrain Project (SLS)

Additional major capital infrastructure projects may be assigned from time to time.

Assigned Major Project teams have been established to define technical design and construction requirements, to manage the procurement processes to award design-build or design-build-finance contracts, and to manage the contracts throughout project implementation. TI Corp draws on both internal and external resources to plan and carry out the delivery of its Assigned Major Projects.

### 4.2 Background

The primary focus of TI Corp’s mandate to successfully deliver major capital infrastructure projects includes consistent oversight and management of these Assigned Major Projects. Under the direction of TI Corp’s Chief Information Officer, the Information Management and Technology (IM/IT) team ensures that TI Corp’s Assigned Major Project teams have the software tools needed to accomplish this.

As a Public Sector corporation, TI Corp uses the cloud-powered Microsoft 365 productivity platform applications and services hosted and delivered by the Office of the Chief Information Officer (OCIO) of British Columbia. The OCIO also leads and oversees strategy, policy and standards for telecommunications, information technology, IT security and the management of the IM/IT investment portfolio for the Province. Additionally, TI Corp utilizes many other custom solutions including commercial off-shelf third-party software.

As TI Corp's mandate expands, so too does our need to replace, develop, upgrade and maintain multiple applications and other third-party software tools.

TI Corp has procured and is deploying a highly configurable Enterprise Content Management platform called OnBase (by Hyland) which includes an Electronic Document and Records Management (EDRMS) module which TI Corp's EDRMS Project Team is currently implementing. TI Corp is also replatforming and/or upgrading many of its existing software applications in order to provide the security, access, version control and audit functionality required to appropriately support the organization's IT infrastructure now and in the future. Additionally, TI Corp is working with KPMG to develop its enterprise technology roadmap spanning all IT architectural domains including IM/IT security.

Therefore, there is a need for experienced and capable technical resources to assist TI Corp by providing professional technical services on an as-required basis.

## 5. Services Description

This section describes the Services for which the list of Qualified Suppliers may be used.

### 5.1 Services Description

The following sub-sections list the Service Areas and details the types of project advisory services that the Corporation may require from Qualified Suppliers.

#### 5.1.1 OnBase Administrator

An individual providing Services in this role will utilize his/her hands-on experience with OnBase EP5 delivered via Hyland's Global Cloud Services (GCS) to support TI Corp's staff in developing, configuring, and maintaining TI Corp's OnBase solution. OnBase Administration Services include, but are not limited to troubleshooting end-user issues with the Unity and Web Clients and employing the use of Hyland's Diagnostic Console and Cloud Portal softwares for this purpose when necessary, developing/updating Unity Forms, executing configuration and administrative tasks using the Configuration and Thick Client softwares via Hyland's Citrix Workspace, using OnBase Studio to develop/update automated workflows, ad-hoc and system tasks, notifications, scripts, and WorkView objects/applications, and suggesting options to mature, improve, and/or enhance the solution.

An individual providing Services in this role may also be called on to participate in EDRMS Project activities such as developing system design and specification documents, working with stakeholders to develop and propose solutions and options based on functional requirements, and training.

#### 5.1.2 Corporate Technology Trainer

An individual providing Services in this role will utilize his/her advanced presentation and instructor skills to develop, coordinate, and deliver training in the use of OnBase Unity and Web client softwares. Advisors will develop and maintain training materials for both initial system deployment and onboarding as well as subsequent system upgrades ensure that trainees' learning experience is interactive, effective and accessible to all participants through in-person and virtual platforms. Although experience with OnBase is preferred, advisors are not required to have existing OnBase experience; however, those without OnBase experience must have the advanced skills necessary to quickly develop and complete a self-directed learning regime in order to quickly acquire the knowledge and expertise necessary to develop and deliver comprehensive, high-quality training support to the Corporation as needed. Assignments may also extend to other TI Corp software platforms if/as needed.

#### 5.1.3 Microsoft 365 Developer

An individual providing Services in this role will utilize his/her comprehensive knowledge of and experience with Microsoft's Enterprise Online platform to lead the adoption, integration, and customization of Microsoft 365 Enterprise Applications & Services to streamline and/or automate TI Corp business processes and improve productivity. Assignments for advisors in this role will include the design and implementation of integrated solutions that utilize any

combination of the Microsoft 365 Enterprise Applications & Services delivered and/or supported by the OCIO, e.g. MS Teams, OneDrive, SharePoint, Planner, Power Apps, Power Automate, Power BI, etc. Assignments will also include ongoing support and troubleshooting, maintenance, training, and updates as necessary to ensure these solutions remain healthy and fully functional.

#### **5.1.4 Senior IT Project Manager**

An individual providing Services in this role will apply his/her advanced project management skills and experience to lead and manage complex IT projects that span multiple business units and require interoperability between BC Government technologies, computing services and hosting environments and Software-as-a-Service (SaaS) vendor technologies, computing services, and hosting environments. Assignments will include managing resources, schedules, and financials throughout the project's life cycle including management of issues, risks, and project change requests to ensure successful and on-time project delivery. This role requires a strategic thinker with strong organizational, leadership, and conflict management skills, a collaborative approach to problem-solving, and extensive experience using project management tools. Advisors will collaborate and coordinate with stakeholders both internal and external to TI Corp having differing concerns and priorities and will report on project status to senior management and executive stakeholders regularly. Senior IT Project Manager assignments will require familiarity with BC Public sector contract management and procurement policies and procedures as well as a high degree of proficiency in both written and oral communications; advisors must have an English language proficiency level<sup>1</sup> equivalent to or exceeding:

- American Council on the Teaching of Foreign Languages (ACTFL) = Advanced High
- Common European Framework of Reference for Languages (CEFR) Level = C1
- Interagency Language Roundtable (ILR) Scale = S4 W4 R4 L4

#### **5.1.5 Senior Business Analyst**

An individual providing Services in this role will leverage his/her extensive experience, superior discovery, analysis and group facilitation expertise, and deep understanding of information management processes to assist TI Corp with project planning and implementation, project team oversight and facilitation, authoring of project artefacts produced in accordance with Software Development Life Cycle (Waterfall, V-Model, etc.) and Agile Methodologies. Assignments require efficient self-directed individuals with strong organizational, leadership, and conflict management skills, a collaborative approach to problem-solving, and extensive experience working with diverse stakeholder groups. Assignments will also require superior documentation skills, extensive experience and skill in enterprise business process re-engineering and related change management as well as knowledge of BC Government

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<sup>1</sup> There are three very well-known language proficiency scales used around the world: the ACTFL scale, the CEFR scale, and the ILR scale. Each scale measures linguistic abilities on various levels to reflect an individual's ability to communicate effectively in a target language.

technology/data standards and information and records management requirements. Advisors will be tasked with identification and documentation of existing business processes and workflows, subsequent analysis and identification of process optimization opportunities, and business process re-engineering and automation across TI Corp's business units. Assignments may also include developing IT solution acceptance criteria definitions, testing, group training, implementation, maintenance, and Project Close out activities including documenting lessons learned.

Senior Business Analyst assignments will require an extremely high degree of proficiency in both written and oral communications; advisors must have an English language proficiency level equivalent to or exceeding:

- American Council on the Teaching of Foreign Languages (ACTFL) = Superior
- Common European Framework of Reference for Languages (CEFR) Level = C2
- Interagency Language Roundtable (ILR) Scale = S4+ W4+ R4+ L4+

#### **5.1.6 Business Analyst**

An individual providing Services in this role will review and evaluate current business processes to identify gaps, provide detailed business process diagrams, identify and document requirements according to industry standard software delivery frameworks including Software Development Life Cycle (Waterfall, V-Model, etc.) and Agile Methodologies, and ensuring information privacy and data requirements are met. This role will assist with producing Security and Threat Risk Assessments (STRA), Privacy Impact Assessments (PIA) and defining functional requirements and detailed workflow specifications including specific acceptance test scripts and managing the user acceptance testing process. Additional services may include development of current solution architecture, solution abstracts, conceptual data models, deployment plan documentation, business requirements documentation, liaising with Commercial off the shelf (COTS) Vendors on possible changes to the COTS solution and assistance with project planning and transition plans including end user training materials and project close out activities.

#### **5.1.7 Enterprise, Technical, and Solutions Architect**

An individual providing Services in this role will utilize his/her extensive training, experience and skills in the disciplines of IT Enterprise, Technical, and Solutions Architecture to assist TI Corp with translating its business requirements into IT capabilities by developing comprehensive architectural models. Advisors will identify and assess TI Corp's current Enterprise Architecture, measure it against TI Corp's enterprise technology roadmap, identify and document gaps, and propose gap resolution options. An individual providing Services in this role will also utilize the outcome of this assessment to continue development and maturation of TI Corp's enterprise technology roadmap, consistent architecture methods, standards and tools, as well as overall timelines and milestones related to implementation of the preceding. Additionally, assignments will include completing specifications for enterprise architect artefacts such as

reference architecture and conceptual architecture, providing input into the IM/IT Approved Strategic Plan, and working with various IT project teams as a resource advisor.

#### **5.1.8 Technical Analyst**

An individual providing Services in this role will be tasked with providing technical support and assistance with computing hardware, software, computer peripherals, digital office equipment, and data network and working closely with various departments and project teams to ensure the smooth operation of TI Corp's IT infrastructure. Assignments will also include troubleshooting to resolve technical issues promptly, supporting and facilitating regular system updates/patches and maintenance to ensure optimal performance and security, assisting with the deployment and configuration of new hardware and software, and maintaining accurate records of technical issues and resolutions in TI Corp's ticketing system. Additionally, advisors will provide training and support to end users both virtually and onsite at various TI Corp offices in the lower mainland, collaborate with other IT teams to address complex technical issues, and provide support for special technology projects such as workstation refreshes, boardroom equipment refreshes, office moves, and new office installations as needed.

#### **5.1.9 Hyland Solution Architect**

An individual providing Services in this role will utilize his/her superior group facilitation and business analysis skills in combination with his/her extensive knowledge and experience with OnBase and all Hyland softwares that interoperate with OnBase EP5 delivered via Hyland's Global Cloud Services (GCS) to assist TI Corp with improving and maturing its OnBase GCS deployment. TI Corp's current OnBase configuration supports the import, storage, and retrieval of a subset of its assigned major project documents for a single assigned major project. Upcoming phases of the EDRMS Project expand this configuration to include new content (document) types, file types, and automated workflows for multiple assigned major projects as well as TI Corp's centralized assigned major project services and corporate functions. Assignments for advisors in this role will include conducting a gap analysis of current OnBase configuration, facilitating discovery workshops and executing analysis of current business processes related to document management, and documenting proposals for future state automation of these processes using the OnBase platform and other Hyland softwares that interoperate with it. Examples include, but are not limited to, Integrated Office Viewer, Workflow, WorkView, ShareBase, OnBase Video, and Hyland Intelligent Document Processing.

## 6. How Responses will be Evaluated

### 6.1 Evaluation Process

TI Corp's evaluation of Responses includes four stages as follows:

#### 6.1.1 Stage One: Evaluation of Mandatory Criteria

Responses not clearly demonstrating that they meet the following mandatory criteria will be excluded from further consideration during the evaluation process:

| Mandatory Criteria                                                                                                                                                                                                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| The Response must be delivered in accordance with the delivery instructions on the cover page of this MULRFQ and as may be set out "delivery of submissions" located in the "overview" menu tab in BC Bid.              |
| The Resource Qualifications Template (Appendix B) must be submitted as part of the Response for each Resource being proposed (to a maximum of 3 resources per category).                                                |
| Response must be in English                                                                                                                                                                                             |
| A Submission Declaration signed and prepared by Respondent for Responses submitted by email or hard copy must be submitted as part of the Response.                                                                     |
| The Response must be in writing and, if in electronic form, must be able to be opened and read by TI Corp. If TI Corp. cannot read or open any attachment to a Response, the Response will be rejected in its entirety. |

#### 6.1.2 Stage Two: Evaluation of Desirable Qualifications

Responses that meet all mandatory criteria will be further assessed against the desirable qualifications.

The Corporation will evaluate Resource qualifications only.

The desirable qualifications for Resources are identified in the Respondent Qualification Template. Response Guidelines, which provide guidance about what Respondents should provide to demonstrate their Resources meet the qualifications are also provided in those templates

TI Corp will evaluate the Respondent's response to each response guideline and assign points based on how well the response demonstrates that the Respondent or Resource, as the case may be, meets or exceeds the associated desirable qualifications.

Each response guideline identifies how many points it is worth in the evaluation of desirable qualifications and if it has a minimum score associated with it.

##### 6.1.2.1 Resource's Qualifications

If this MULRFQ is intended to qualify Resources, to pass this stage of the evaluation, Resources are required to both:

- 1) Meet or exceed any minimum scores associated with individual response guidelines in the Resource Qualification Template; and

**2)** Meet or exceed any minimum overall score identified in the Resource Qualification Template.

Any Resource that does not meet the criteria above will not pass this stage and will receive no further consideration.

If this MULRFQ is intended to qualify Resources, and none of a Respondent's Resources pass this stage of the evaluation, the Respondent will not pass this stage of the evaluation.

### **6.1.3 Stage Three: Reference Checks**

TI Corp may conduct reference checks on Respondents, including, if applicable, any Resources proposed, that have passed stage two.

Reference checks may be conducted on the Respondent, and if applicable, proposed Resources on a pass-fail basis. The Corporation may reject any Respondent or proposed Resource for which references requested are not provided or if requested, the references, in the Corporation's sole opinion, are deemed to be unsatisfactory. If a Respondent was allowed to propose Resources in the MULRFQ and all the Resources proposed by the Respondent fail the reference check, if any, the Respondent will be deemed to have failed the reference check.

Any reference cannot be a contact internal to the Respondent's or Resource's organization e.g. the referee cannot be a co-worker, supervisor, or other internal contact. Referees need to be from a party that is not the Respondent or the Resource. For each referee, the Respondent should provide the following information:

- a)** Name of the referee and their organization, together with the position, mailing address, telephone number and email address of the referee; and
- b)** Current relationship of the Respondent or Resource, if any, with the referee.

Failure to provide the referee information set out above, if requested, will result in the Respondent, the Resource, or both the Respondent and the Resource, failing the reference check.

In addition, TI Corp reserves the right to contact references that were not provided by the Respondent to obtain references pertaining to the Respondent and Respondent Resource (if applicable). This includes contacting substitute referees from the same reference company as the one provided by the Respondent.

TI Corp reserves the right, on a pass-fail basis, to reject any Respondent or, if applicable, proposed Resource if any of these other references, if any, in TI Corp's sole opinion, are deemed to be unsatisfactory.

Stage three does not supersede any other reservation of rights in favour of TI Corp, including any reservation of rights set out in section 3.18.

In addition to the Stage three reference check, TI Corp reserves the right to recheck Qualified Supplier and Qualified Resource references, and to recheck proposed references in connection with a particular Competition Notice.

#### 6.1.4 Stage Four: Notification and Debriefings

Respondents will be notified as to whether the Respondent has become a Qualified Supplier and, if applicable, which proposed Resources have become Qualified Resources.

TI Corp will offer a debriefing to Respondents. The debriefing will be at a mutually agreeable time and, at the sole option of TI Corp, by telephone conference or some other means. On request of the Respondent, TI Corp will promptly provide a written explanation for its decision.

## 7. How Responses should be organized

Responses should be organized as follows:

- a) Respondents should take care to prepare and submit their Response in conformity with the mandatory criteria table in section 6.1.1., including providing the Respondent Qualifications Template (Appendix A) and, if this MULRFQ is intended to also qualify Resources, one Resource Qualification Template (Appendix B) for each Resource being proposed.
- b) Additional attachments that should be included in a Response may be identified in the Respondent Qualification Template and the Resource Qualification template.
- c) Unless specifically requested by TI Corp, the Response should not include any additional attachments or appendices. In its evaluations TI Corp may only consider material that is included in the Response. TI Corp may not, for example, consider the content of a website or online document even if the URL or a hyperlink to it is provided in the Response.
- d) All pages should be consecutively numbered.

## 8. How the Multi-use List of Qualified Suppliers will be used

### 8.1 Use of List

This section describes how TI Corp may use the Multi-use List to select Qualified Suppliers to deliver Services as Contractors.

**Only Qualified Suppliers will be sent Competition Notices and allowed to participate in procurements that may issue from this MULRFQ.**

These rules are subject to change, from time to time, as TI Corp may deem necessary, with notice to Qualified Suppliers posted as Addenda on BC Bid.

By submitting a Response, the Respondent agrees to the process below, including the minimum time frame within which the Qualified Supplier, may have to respond to a Competition Notice as set out in section 8.1.2.

#### 8.1.1 Use on a Non-exclusive "as, if and when Requested" Basis

TI Corp may, in its sole discretion, from time to time, use the Multi-use List in connection with the acquisition and provision of the Services described in the MULRFQ.

Qualified Suppliers may be contacted on a non-exclusive "as, if and when requested" basis to compete on opportunities for the provision of Services in accordance with the selection methods set out in this section 8. The selection of a Qualified Supplier to serve as a Contractor will not be based on the scores assigned to a Response associated with becoming a Qualified Supplier under this MULRFQ, but will be based upon the requirements and evaluation criteria included in a Competition Notice issued with respect to a specific project or assignment for Services.

### **8.1.2 Selection Methods**

TI Corp may select a Qualified Supplier to act as a Contractor using the following selection methods:

- a)** TI Corp will invite, by written Competition Notice, all Qualified Suppliers to compete to supply the Services described in a given Competition Notice, except as otherwise provided in section 8.
- b)** No Competition Notices will be issued before the Initial Intake.
- c)** The Competition Notice will specify the requirements of a particular project or assignment and the criteria upon which a Qualified Supplier will be evaluated. These criteria may include, but not necessarily be limited to:
  - i)** a Qualified Supplier's pricing;
  - ii)** Resources proposed; and
  - iii)** other requirements as detailed in the Competition Notice.
- d)** If this MULRFQ is intended to qualify Resources, Qualified Resources will be among the Resources required to perform the Services under any Contract that results from the MULRFQ.
- e)** A Qualified Supplier will have not less than ten calendar days from the date on which a Competition Notice is issued by TI Corp (the actual response deadline to be specified in the Competition Notice) to submit a written response to the Competition Notice.
- f)** TI Corp may directly negotiate a Contract with a supplier of TI Corp's choice or a Qualified Supplier where one or more of the following conditions applies:
  - i)** only one Qualified Supplier has been qualified under the MULRFQ;
  - ii)** an extreme urgency brought about by event unforeseeable by TI Corp and the Services could not be obtained in time by means of a competitive process;
  - iii)** a competitive process would interfere with the TI Corp's ability to maintain security or order or to protect human, animal or plant life or health;
  - iv)** the acquisition is of a confidential or privileged nature and disclosure through an open bidding process could reasonably be expected to compromise government confidentiality, cause economic disruption or be contrary to the public interest; or
  - v)** other allowed grounds that may be provided for by applicable trade agreements and policy.

### 8.1.3 No Obligation to Contract or Use the Multi-use List

TI Corp has no obligation to:

- i) enter into a Contract with any one or more Qualified Supplier(s); or
- ii) use the Multi-use List in an exclusive manner, and reserves the right, in its sole discretion to:
  - a) employ open competitions that include suppliers external to the Multi-use List of Qualified Suppliers; and
  - b) otherwise engage suppliers external to the Multi-use of Qualified Suppliers in connection with any project required by TI Corp.

### 8.1.4 Form of Contract

The Competition Notice will identify the form of the applicable Contract (or alternately select contract clauses that may be applicable) that may result from it. Any Contract will be between TI Corp and Qualified Supplier (as Contractor) and, as applicable, will name specific Qualified Resources as key personnel who the Contractor will cause to perform the Services on the Contractor's behalf.

Contracts are likely to include terms and conditions similar to those included in the Province's standard "General Services Agreement", "Information Technology & Management Consulting Professional Services Agreement", or "Financial Review and Assurance Services Agreement". Copies of these agreements can be found [here](#).

The form of Contract will also require Suppliers to comply with TI Corp's policies, as they may be established and or updated from time to time.

#### **Tools, Travel Location and Facilities**

Projects will require Consultants to be available for contact via phone or email during the Corporation's standard business hours (8am-5pm Pacific Time) and may require Consultants to attend meetings via MS Teams or work on site from time to time. Any pre-approved travel will be reimbursed at the Provincial standard travel rates for Group I found here

Consultants should have access to standard office automation tools (i.e., e-mail, MS Word, MS Excel, MS Teams and MS PowerPoint). MS Project may be required for certain assignments.

When required to work on-site Consultants may have access to a workspace that has a desk, phone, and computer with LAN/WAN and Internet connectivity, as well as standard office automation tools as necessary.

### 8.1.5 Tax Verification Letter

A Competition Notice will indicate whether a Tax Verification Letter will be required as part of Contract finalization.

### 8.1.6 Binding and Non-binding Competition Notices

A Competition Notice may be a binding process that is intended to create what is known in Canadian tendering law as “contract A” or it may be a negotiated, non-binding process that is not intended to create any contract A.

## **Appendix A: Sample Forms**

Document is available for download in the “RFx documents” section for the MUL RFQ

- Information and Technology and Management Consulting Professional Services Agreement.

## **Appendix B: Resource Qualification Form**

Document is available for download in the “RFx documents” section for this MULRFQ.

## **Appendix C: Submission Declaration**

Document is available for download in the “RFx documents” section for this MULRFQ and attached to Appendix B: Resource Qualification Form. *(also attached to Appendix B)*